



**BRAINLYHQ ECOSYSTEM
REGULATIONS**

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VERSION: 1.1.

GENERAL PART AND SPECIFIC RULES

I. DEFINITIONS

§ 1. In this document, the following terms shall have the following meanings:

- A. BrainlyHQ Ecosystem (Ecosystem) - the totality of free digital services, communication platforms (including the Discord server), websites, and browser extensions associated with the BrainlyHQ brand.
- B. Management - the governing body of the Ecosystem, consisting of the Ecosystem Manager and designated Administrators.
- C. Ecosystem Manager - the individual acting as the chairman of the management board, holding the final decision-making authority on all structural and operational matters of the Ecosystem.
- D. Administrator - a staff member ranked higher than a Moderator in the hierarchy, responsible for overseeing the technical and organizational functioning of the platforms and coordinating the work of the Staff.
- E. Moderator (Staff) - a member of the volunteer team responsible for directly maintaining order, enforcing the regulations, and providing ongoing assistance to Users.
- F. User - any natural person using any element of the Ecosystem.
- G. Client - a User who actively uses the Ecosystem, including interacting with the embedded server economy, virtual systems, or any other element thereof.
- H. Product - any free digital content, functionalities, roles, virtual items, and services offered within the Ecosystem.
- I. Brainly Coins - a proprietary, virtual unit of account generated, tracked, and modified exclusively by the Brainly Core bot based on algorithmic activity metrics, possessing no real-world material, financial, or legal tender value.
- J. XP (Experience Points) - an internal numeric variable bound securely to the Client's profile within the bot's database, dynamically reflecting the quantitative volume of engagement, message metrics, and functional activity across the Ecosystem.

II. OWNERSHIP AND LEGAL STATUS

§ 1. The owner and entity responsible for the technical infrastructure of the server is a natural person representing the company Brainly spółka z ograniczoną odpowiedzialnością with its registered office in Kraków (Aleja Pokoju 62/8, 31-564 Kraków), entered into the register of entrepreneurs of the National Court Register under KRS number 0000354511 (hereinafter referred to as: the "Company").

§ 2. The BrainlyHQ Ecosystem is not formally, structurally, or legally affiliated with the Company. It operates as an independent community project.

§ 3. The Company bears no responsibility for actions, content, moderation, and incidents occurring within the BrainlyHQ Ecosystem. Full responsibility for ongoing operational functioning is borne by the Management and the Users within the scope of their actions.

§ 4. BrainlyHQ uses the logo, trademarks, and other visual materials belonging to the Company solely on the basis of and within the limits of explicit consent granted. All rights to these materials remain the property of the Company.

III. FREE ACCESS AND ECOSYSTEM FUNCTIONING

§ 1. Using any resources, functions, channels, and Products included within the BrainlyHQ Ecosystem is completely free of charge.

§ 2. All systems, bots, features, and economy elements are provided "as is" without any guarantee of error-free or uninterrupted operation.

§ 3. Users must be at least 13 years old to access and participate in the Ecosystem, in accordance with the policies of our communication platforms. Users residing in jurisdictions where the age of digital consent is higher are required to comply with local laws or obtain necessary parental or guardian consent.

IV. GENERAL RULES AND LANGUAGE

§ 1. The primary and official language of communication, documentation, and moderation within the Ecosystem is English. The active use of other languages is permitted within communication zones designated for that purpose.

§ 2. All systems, branding, graphics, designs, bots, source code, content, and related materials of BrainlyHQ are protected by intellectual property laws. Unauthorized copying, redistribution, modification, reverse engineering, or commercial use of these assets is strictly prohibited.

§ 3. By remaining within the structures of the Ecosystem (including the Discord server), the User expresses full consent to comply with all provisions of these regulations and their future updates.

V. STAFF, VOLUNTEERING, AND MODERATION

§ 1. The Ecosystem is created, developed, and moderated by the team of Moderators and Administrators under the leadership of the Ecosystem Manager.

§ 2. All actions taken by Moderators, Administrators, and other staff members are entirely on a voluntary basis. Performing these functions does not constitute an employment relationship, a mandate contract, or any other form of paid employment within the meaning of general law.

§ 3. Detailed rules of internal work, penalty enforcement procedures, and guidelines for the Staff are specified in a separate technical document (Moderation Guidelines), available exclusively to verified team members.

VI. PROHIBITED ACTS – COMMUNITY RULES

§ 1. It is mandatory to treat all community members with respect. Harassment, discrimination, hate speech, personal attacks, and intentionally targeting others based on their race, nationality, religion, gender, language, or personal beliefs are categorically prohibited.

§ 2. All discussions must be conducted in a civil and constructive manner. Provoking conflicts, trolling, displaying excessive toxicity, and intentionally disrupting the flow of conversations are prohibited.

§ 3. Spamming, abusing mentions, flooding messages, sending meaningless content, and mass, repetitive posting of images or GIFs are prohibited.

§ 4. Users are required to use text and voice channels strictly according to their intended purpose and topic.

§ 5. Sharing NSFW (Not Safe For Work) content, violent, graphic, shocking, illegal materials, or content that is inappropriate in any other way is strictly forbidden.

VII. PROHIBITED ACTS – ACCOUNT AND SAFETY

§ 1. The User has a duty to protect their personal information. Sharing private data (both one's own and belonging to third parties) without explicit consent is prohibited.

§ 2. Impersonating other community members, Staff members, Management, external organizations, or using misleading identities is prohibited.

§ 3. Conflicts and incidents occurring in direct messages (DMs) should be reported to the Staff along with appropriate evidence. Harassment through direct messages is treated equally to harassment directly on the server.

§ 4. Exploiting system errors (bugs), vulnerabilities, or unintended mechanics in any element of the Ecosystem is prohibited. Any detected bug must be reported immediately to the Management.

VIII. PROHIBITED ACTS – ECONOMY AND VIRTUAL SYSTEMS

§ 1. Any form of virtual economy abuse, including using multiple accounts (alt-accounts), artificially generating activity, and manipulating the reward system, is strictly prohibited.

§ 2. Chance-based systems, contests (giveaways), minigames, pet systems, collections, and any future economic features must be used fairly and in accordance with their public technical documentation.

IX. PROHIBITED ACTS – BOTS AND SYSTEM FEATURES

§ 1. Bot commands must be used responsibly. Intentionally causing spam with commands, overloading systems, or disrupting the operation of automated features may result in an immediate restriction of access to these tools.

§ 2. Users are required to respect technical breaks, maintenance work, the deployment of experimental features, outages, and other temporary system limitations.

X. ADVERTISING AND PARTNERSHIPS

§ 1. Advertising other servers, websites, products, social media accounts, referral links, or external communities without the explicit consent of the Staff is prohibited.

§ 2. Official partnerships may only be established through approved and formal partnership procedures of the BrainlyHQ Ecosystem.

§ 3. Detailed information regarding partnership criteria, benefits, and application forms can be found on the official BrainlyHQ partnership program website: <https://partnershiphq.vercel.app>.

XI. VIRTUAL ECONOMY AND ODDS

- § 1. An internal, virtual server economy system operates within the Ecosystem.
- § 2. All virtual currencies, items, and benefits have no real monetary value, are not exchangeable for real legal tender, and cannot be traded outside the Ecosystem.
- § 3. All economy mechanics, including algorithms, loot-drop rates, and currency acquisition rules, are public and detailed in the official technical documentation available at: brainlyhq.vercel.app/docuemntation.html or in Discord server. A User participating in the economy declares that they have read the aforementioned specification.

XII. ENFORCEMENT AND PENALTIES

- § 1. Users are strictly required to comply with Staff instructions and moderation decisions.
- § 2. Public discussions and arguments regarding moderation actions are prohibited. Appeals, feedback, and complaints must be directed exclusively in private, using the ticket system or a direct message to an Administrator.
- § 3. Insulting, mocking, or intentionally showing a lack of respect towards Moderators, Administrators, and the entire BrainlyHQ team is prohibited and will be treated with particular severity.
- § 4. BrainlyHQ Management reserves the right to take appropriate disciplinary action against behaviors not explicitly listed in these regulations if they negatively impact the community or infrastructure.
- § 5. Depending on the severity and harmfulness of the act, applicable penalties may include: warnings, temporary mutes, access restrictions to features, account suspensions, a complete reset of progress in the virtual economy, or a permanent ban from the Ecosystem.

XIII. RESOLUTION OF DISPUTES AND LEGAL MATTERS

- § 1. All reports regarding violations of the regulations, disputes between Users, and complaints against moderation actions shall be reviewed in the first instance by the Ecosystem Management.
- § 2. In the case of formal or legal matters, copyright infringement notices, personal data requests, or issues directly affecting the use of the Company's visual property, the matter shall be reviewed by a dedicated legal department (the Company's Legal Department or external legal counsel designated by the Ecosystem Manager).
- § 3. Decisions made by the competent body after exhausting the internal appeal procedure are final within the structures of the Ecosystem.

XIV. BRAINLY CORE BOT TERMS OF USE

- § 1. The following terms of service establish the precise rules, legal parameters, rights, and contractual obligations associated with the technical infrastructure, operational deployment, and functional exploitation of the Brainly Core virtual bot within the Ecosystem.
- § 2. The Brainly Core bot is an automated software utility provided to Users and Clients entirely free of charge, engineered specifically to facilitate real-time community moderation, data automation, server security, and the execution of embedded gamification structures and virtual economy mechanics.

§ 3. In this subsection, the following comprehensive definitions are formally introduced to extend and complement the core glossary of the Ecosystem:

- A. Brainly Coins - a proprietary, virtual unit of account generated, tracked, and modified exclusively by the Brainly Core bot based on algorithmic activity metrics, possessing no real-world material, financial, or legal tender value.
- B. XP (Experience Points) - an internal numeric variable bound securely to the Client's profile within the bot's database, dynamically reflecting the quantitative volume of engagement, message metrics, and functional activity across the Ecosystem.
- C. Discord Profile Data - public-facing account parameters retrieved, verified, and updated via the official Discord Application Programming Interface (API), comprising the unique numerical identifier (User ID), the current display username, and the active digital avatar asset link.

§ 4. Engagement with the Brainly Core bot is strictly voluntary and is initiated automatically the moment a User interacts with any automated interface, triggers text-based command syntaxes, inputs custom queries, or resides within communication channels managed by the software.

§ 5. The Management provides no warranty, explicit or implied, regarding the permanent, uninterrupted, or error-free availability of the Brainly Core bot, and expressly reserves the right to suspend operations temporarily for emergency database maintenance, algorithmic calibration, code updates, or total system overhauls without prior notice to the Clients.

§ 6. It is categorically prohibited for any User to execute, attempt, or facilitate reverse engineering, decompilation, disassembly, or source code extraction of the Brainly Core bot, nor shall any User initiate malicious query flooding, API rate-limit abuse, or Denial of Service (DoS/DDoS) attacks against the hosting infrastructure.

§ 7. All virtual assets, accumulated balances of Brainly Coins, statistical counters, and XP levels remain the exclusive digital property of the Ecosystem's system architecture; the Management retains absolute authority to reset, deduct, modify, or permanently delete these parameters in instances of automated exploitation, script errors, or regulatory violations.

§ 8. The User expressly acknowledges that the automated moderation features of the Brainly Core bot may dynamically restrict profile permissions, assign server punishments, or log user behavior based on pre-programmed string filters designed to maintain platform safety, and agrees to hold the Management harmless for automated algorithmic enforcement actions.

XV. BRAINLY CORE PRIVACY POLICY

§ 1. The following privacy policy document delineates the comprehensive guidelines, strict legal scope, operational purpose, and legitimate processing frameworks governing all technical data and identification variables processed by the Brainly Core bot during User interactions.

§ 2. The Brainly Core bot collects, processes, and systematically archives within a secure, encrypted external database only a strictly minimized, essential set of technical parameters necessary to maintain the functional integrity of the Ecosystem, limited precisely to the following vectors:

- A. The unique, immutable numerical identifier of the user account (Discord User ID).

- B. The current active username and global display name utilized on the primary communication platform.
- C. The direct system URL and cryptographic hash representing the user's digital profile avatar asset.
- D. Internal database variables, transaction ledgers, gamification records, and wagers including, but not limited to, the numerical balance of Brainly Coins and the linear progression log of XP.

§ 3. The Brainly Core bot strictly, absolutely, and unconditionally does not collect, track, request access to, or archive any User email addresses, account passwords, real-world physical locations, telephone numbers, financial details, billing records, or any form of sensitive personal data.

§ 4. The underlying legal framework for processing the data points specified in § 2 is the legitimate interest pursued by the Management, which consists of the absolute technical necessity to guarantee server operational stability, preserve the continuity of the virtual economy, and deploy automated defense protocols.

§ 5. Access to the structured database repositories containing the information compiled by the Brainly Core bot is restricted exclusively to authorized members of the Management strictly within the scope of database troubleshooting, technical recovery, or economic fraud investigation.

§ 6. Publicly retrieved profile identifiers and internal progress variables are retained continuously for the duration of the User's active participation; upon the definitive departure of a User, all associated records within the bot's active database may be permanently scrubbed.

§ 7. Every Client maintains the explicit right to request transparency regarding their data, the right to demand rectification of erroneous data, the right to restrict automated processing, and the right to absolute erasure via the internal ticket system.

XVI. GENERAL SERVICES TERMS OF SERVICE

§ 1. The following terms establish the general rules, technical requirements, and legal frameworks governing access to and use of all current and future digital Products, services, platforms, and tools operating within the Ecosystem.

§ 2. The provisions of this chapter apply unconditionally to every single Product, including communication servers, websites, automation bots, browser extensions, and virtual economy systems made available inside the Ecosystem.

§ 3. Access to the general services of the Ecosystem is entirely open and free of charge for every User, subject to their absolute compliance with the community standards and technical requirements defined by the Management.

§ 4. The use of the Ecosystem's Products does not entail the execution of any paid civil law contract, and the Management does not charge any subscription, registration, or transaction fees for the standard utilization of digital assets.

§ 5. The User agrees to use all services and Products strictly in accordance with their intended purpose, and is explicitly prohibited from employing any automation scripts, scraping tools, or external bots that interfere with the stability of the Ecosystem.

§ 6. All general services are provided and developed within a community-driven model, meaning that the Management retains the full right to modify, restrict, supplement, or completely remove individual Products at any time without prior notice.

§ 7. Any violation of the terms of service regarding any single element of the Ecosystem entitles the Management to immediately and completely block the User's access to all other current and future Products associated with the BrainlyHQ brand.

XVII. INTELLECTUAL PROPERTY AND USER-GENERATED CONTENT (UGC)

§ 1. All digital systems, custom source codes, database structures, interface designs, brand graphics, and operational scripts related to the Ecosystem are protected by international intellectual property and copyright laws.

§ 2. The User is granted a non-exclusive, non-transferable, revocable, and strictly personal license to access and use the Ecosystem's Products solely for their intended, non-commercial purpose within the provided platforms.

§ 3. Any unauthorized redistribution, copying, modification, decompilation, public display, or commercial exploitation of any Ecosystem assets without express, prior written consent from the Management is strictly prohibited.

§ 4. By publishing any content within the Ecosystem, the User automatically grants the Management a perpetual, irrevocable, worldwide, royalty-free license to use, host, store, and display such User-Generated Content (UGC) for administrative purposes.

§ 5. The User represents and warrants that any content they upload does not violate the intellectual property rights of any third party, and agrees to assume sole legal liability for any claims arising from a breach of this warranty.

XVIII. LIMITATION OF LIABILITY AND FORCE MAJEURE

§ 1. To the maximum extent permitted by law, the Management explicitly disclaims all warranties, express or implied, including but not limited to implied warranties of merchantability or fitness for a specific purpose.

§ 2. Under no circumstances shall the Management, the Staff, or the Company be held liable for any direct or indirect damages, including loss of data, loss of Brainly Coins, or service interruptions resulting from technical errors.

§ 3. The Ecosystem shall not be held liable for any failure or interruption of service resulting from a Force Majeure event, including network failures, hosting outages, natural disasters, or cyber attacks.

§ 4. In the event of a catastrophic database failure or corruption, the Management reserves the absolute right to execute a technical database rollback, and the User agrees that lost virtual progress does not entitle them to compensation.

XIX. MODIFICATIONS TO REGULATIONS

§ 1. The Management reserves the right to modify these regulations at any time.

§ 2. Updates will be announced via official communication channels. Continued use of the Ecosystem seven days after the announcement constitutes acceptance of the updated terms.

XX. APPEALS PROCESS

§ 1. Any appeal regarding moderation actions must be submitted via the ticket system within 7 days of the incident. Appeals submitted after this period may be rejected.

XXI. SECURITY RECOMMENDATIONS

§ 1. The Management strongly recommends that all Users, particularly Staff members, enable Two-Factor Authentication (2FA) on their accounts to prevent unauthorized access.

§ 2. The security of a User's account is the sole responsibility of the User. The Ecosystem is not liable for losses resulting from compromised accounts.

XXII. DATA PRIVACY CLARIFICATION

§ 1. Within the scope of the Brainly Core bot, processed identifiers (such as User IDs) are categorized as system-technical identifiers rather than personal data under GDPR, provided they are not linked to identifiable real-world information.

XXIII. REPORTING OBLIGATIONS (GOOD SAMARITAN)

§ 1. Users are encouraged to report any observed violations of these regulations or security threats to the Staff using the official ticket system.

§ 2. Reports should be supported by relevant evidence, such as screenshots or message references, to facilitate a prompt and effective investigation.

XXIV. PARTNERSHIP AGREEMENT TEMPLATE

§ 1. This section provides the internal partnership agreement template to be used when establishing official partnerships.

Cracow, _____ (Date)

FORMAL PARTNERSHIP AGREEMENT

I. PARTIES TO THE AGREEMENT

This Agreement is entered into by and between:

BrainlyHQ Ecosystem Management, represented by: _____

hereinafter referred to as the "Ecosystem",

and Partner Name/Entity: _____

Partner ID/Discord User ID: _____

hereinafter referred to as the "Partner".

II. PARTNERSHIP TYPE (Please check one)

☐ Individual Clients

☐ Creators

- ☐ Brainly Marketplace
- ☐ Servers / Organizations

III. COOPERATION CONSULTANT

Assigned Cooperation Consultant: _____

IV. SUBJECT OF AGREEMENT

The Parties hereby establish a formal cooperation for mutual promotion, community development, and project execution within the BrainlyHQ Ecosystem.

V. SPECIFIC REQUIREMENTS AND BENEFITS

The Partner agrees to fulfill the requirements and receive the benefits associated with the selected Partnership Type, as detailed below:

Agreed Requirements for Partner:

Agreed Benefits for Partner:

VI. OBLIGATIONS AND COOPERATION

The Parties commit to maintaining professional communication and protecting the reputation of the BrainlyHQ brand. The Partner agrees to provide services as defined in the specific Partnership Programme details.

VII. CONFIDENTIALITY

The Parties agree to keep confidential any non-public technical, financial, or organizational information obtained during the course of the partnership, including moderation strategies and internal development plans.

VIII. INTELLECTUAL PROPERTY

All trademarks, logos, and digital assets provided by the Ecosystem remain its exclusive property. The Partner is granted a limited, revocable license to use these materials solely for the purpose of fulfilling this Agreement.

IX. TERM AND TERMINATION

This Agreement is effective from the date of signature. Either Party may terminate this Agreement at any time with 14 (fourteen) days' written notice. Immediate termination is permitted in the event of a material breach of the Ecosystem Regulations or harmful conduct.

X. LIABILITY

The Management shall not be liable for any indirect or consequential losses. The Partner assumes full responsibility for any content published on their social media or servers associated with the partnership.

XI. SIGNATURES

Ecosystem Signature

Partner Signature